

HOUSE BILL 197

By Leatherwood

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 13; Title 39; Title 54; Title 55 and Title 71,
relative to the collection, storage, claiming, and
disposal of personal property used for camping.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 55, is amended by adding the following
as a new chapter:

55-32-101. As used in this chapter:

(1) "Abandoned property":

(A) Means personal property that is unaccompanied by objective
indications of ownership; and

(B) Does not include unattended property;

(2) "Camping" has the same meaning as defined in § 55-8-212;

(3) "Department" means the department of transportation; and

(4) "Unattended property":

(A) Means personal property that is accompanied by signs of ownership,
but the owner is temporarily absent; and

(B) Includes a tent, raised tarp, or other temporary shelter at which the
owner is temporarily absent that is filled with personal belongings or items that
are being stored in an orderly manner, including packed up, wrapped, or
covered, regardless of whether there is a third party present designated to watch
or secure the personal property during the owner's temporary absence.

55-32-102.

The department of transportation shall develop and implement a policy regarding the collection, storage, claiming, and disposal of personal property used for camping from:

(1) The shoulder, berm, or right-of-way of a state or interstate highway;

or

(2) Under a bridge or overpass, or within an underpass, of a state or interstate highway.

55-32-103.

The department shall develop and implement the policy required by § 55-32-102 through partnerships with local law enforcement agencies, the department of safety, the division of housing and emergency shelter within the department of human services, local homeless coalitions, local and state housing authorities, other local and state agencies, and nonprofit organizations and other entities that provide transitional housing and related services to persons experiencing homelessness.

55-32-104.

Notwithstanding another law, the policy developed by the department pursuant to this chapter must require:

(1) Whenever feasible, site assessment in advance of removal operations;

(2) Posting of a notice to vacate at the removal site at least seventy-two (72) hours prior to initiating removal operations that includes:

(A) Instructions for how to retrieve property that has been removed;

(B) A statewide toll-free telephone number to call to claim the property that is removed and stored; and

(C) The physical address of the appropriate state or local agency or office where the owner of removed property may appear in person to arrange for the retrieval of the owner's property;

(3) Posting of the notice described in subdivision (2) prominently in a plastic or other weatherproof sleeve on available surfaces at the removal site, such as on occupied tents, cement pillars, trees, and utility poles;

(4) Completion of all removal operations initiated as a result of a citizen complaint within thirty (30) days following the receipt of the complaint;

(5) Contacting of service providers to request outreach services for persons experiencing homelessness at the removal site;

(6) Collection and labeling of personal property at the removal site, and storage of removed property for at least ninety (90) days;

(7) Immediate disposal of the following without collection or storage:

(A) Trash, garbage, or other debris;

(B) Personal property that presents an immediate health or safety hazard;

(C) Perishable food; and

(D) Abandoned property;

(8) Evaluation of the facts and circumstances surrounding personal property in determining if personal property is trash, garbage, or other debris or abandoned property subject to disposal under subdivision (7);

(9) Collection and storage of an item of personal property, if the person conducting the removal operation has a reasonable doubt as to whether the item constitutes trash, garbage, or other debris or abandoned property;

(10) Separation of medications, medical devices, personal identification, and legal documents during the collection and labeling procedures;

(11) The storage facility or other place where removed property is being held to be a secure location and accessible by public transportation; and

(12) Disposal of removed property that is not claimed within ninety (90) days of being collected, unless the property is needed for evidence in a criminal proceeding.

55-32-105.

The department may promulgate rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to implement this chapter.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.